

ASCII MASTER FLOW – PANEL 1/9: PHRA evolution, statutory identity and the enforceable human-rights field

PROTECTION OF HUMAN RIGHTS ACT, 1993

deemed commencement 28 September 1993 | presidential assent 8 January 1994.

Amendments in 2006 and 2019 reshape design; commissions remain statutory.

SECTION 2(d)

rights relating to life, liberty, equality and dignity

-> guaranteed by Constitution or embodied in defined International Covenants

-> enforceable by courts in India.

SECTION 2(f)

ICCPR + ICESCR + notified UN General Assembly covenant or convention.

INSTITUTIONAL MAP

NHRC at Union level | SHRCs at State level | Human Rights Courts as trial route.

LIMIT

human-rights importance does not convert NHRC or SHRC into a constitutional court.

ASCII MASTER FLOW – PANEL 2/9: NHRC and SHRC composition, appointment, tenure and removal

NHRC

Chair: former CJI or Supreme Court Judge.

Judicial members: one Supreme Court route + one Chief Justice of High Court route.

Three experts in human rights, at least one woman.

Seven specialised officeholders are deemed members for section 12(b)-(j).

SHRC

Chair: former Chief Justice or Judge of High Court.

One judicial member + one human-rights expert.

APPOINTMENT

President for NHRC | Governor for SHRC

after statutory committee recommendation; vacancy does not alone invalidate proceedings.

TERM

three years, subject to age 70 and current reappointment rules.

REMOVAL

President removes NHRC and SHRC members under the Act;

proved misbehaviour or incapacity uses Supreme Court inquiry.

ASCII MASTER FLOW – PANEL 3/9: Section 12 functions, civil-court powers and investigative support

SECTION 12 FUNCTIONS

suo motu or petition inquiry | court intervention with approval
| institution visits | review constitutional/legal safeguards
| review factors inhibiting rights | study treaties
| research | literacy | NGO encouragement | other necessary functions.

SECTION 13 INQUIRY POWERS

summon and examine on oath | documents | affidavits
| public records | commissions | specified additional powers.

SECTION 14 INVESTIGATION

Commission may use Central or State government agency or officers with consent.

PROCEDURAL FAIRNESS

notice and hearing where reputation or conduct may be prejudicially affected.

LIMIT

civil-court evidence powers support inquiry;
they do not create ordinary civil or criminal jurisdiction.

ASCII MASTER FLOW – PANEL 4/9: Complaint-to-recommendation procedure, one-year bar and legal effect

ENTRY

complaint or suo motu material -> jurisdiction screen -> inquiry or investigation.

SECTION 36

no parallel inquiry where another named commission is seized.

Section 36(2): no inquiry after one year from the alleged violative act.

SECTION 18 OUTPUTS

recommend compensation or damages

| recommend prosecution or other action

| approach Supreme Court or High Court

| recommend immediate interim relief.

FOLLOW-UP

government comments/action report ordinarily within one month

-> Commission publishes report, recommendation and response.

LEGAL EFFECT

recommendation carries public and institutional weight but is not a self-executing decree.

TRAP

action-taken reporting != mandatory acceptance and grave facts alone do not erase section 36(2).

ASCII MASTER FLOW – PANEL 5/9: Armed-forces procedure and Human Rights Courts: two special routes

SECTION 19: ARMED FORCES

NHRC may act on its own motion or petition

-> seek Central Government report

-> either not proceed or make recommendation

-> Central Government reports action within three months

-> Commission publishes material.

LIMIT

ordinary inquiry architecture is replaced by this special report-based route.

SECTIONS 30-31: HUMAN RIGHTS COURTS

State Government, with concurrence of Chief Justice of High Court,
may specify a Court of Session for speedy trial of human-rights offences.

Special Public Prosecutor: Public Prosecutor or advocate with at least seven years' practice.

BOUNDARY

Human Rights Court tries offences; NHRC or SHRC inquires and recommends.

ASCII MASTER FLOW – PANEL 6/9: NHRC-SHRC jurisdiction, overlap and specialised-commission coordination

NHRC

national statutory mandate subject to PHRA exclusions and transfer rules.

SHRC

inquires into matters relatable to State List and Concurrent List;
section 29 adapts functions and omits treaty study.

TRANSFER

NHRC may transfer a complaint to a competent SHRC under statutory conditions.

OVERLAP

NCSC, NCST and NCBC have constitutional safeguard mandates.
Women, child, minority and disability bodies have specialised statutory fields.

COORDINATION

common intake metadata -> reasoned referral -> no duplicate inquiry
-> joint thematic work -> preserve specialist voice.

LIMIT

an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

ASCII MASTER FLOW – PANEL 7/9: Paris Principles, GANHRI accreditation and current-status discipline

PARIS PRINCIPLES, 1993

broad legal mandate | pluralism | open appointment
| adequate resources | stable tenure | independent methods | accessibility.

DOMESTIC TEST

PHRA mandate and inquiry powers
versus police/deputation dependence, short terms, selection opacity and weak follow-up.

GANHRI CONTROL

March 2025 SCA recommended B downgrade.
India challenged with required Bureau support.
Public membership page continued to list India as A on the 24 August 2026 control.

SAFE LANGUAGE

current public A listing + unresolved official scrutiny.

TRAP

recommendation under challenge != completed downgrade;
A listing != proof of perfect Paris-Principles compliance.

ASCII MASTER FLOW – PANEL 8/9: Three human-rights case-law boundaries

Paranjit Kaur v. State of Punjab (1999)

Supreme Court used NHRC as an expert body assisting Article 32 jurisdiction.

This constitutional assignment is not ordinary PHRA jurisdiction.

N.C. Dhoundial v. Union of India (2003)

section 36(2) is a jurisdictional bar;

a completed violation does not become a daily continuing wrong merely through non-reparation.

EEVFAM (2016)

excessive-force allegations require lawful inquiry under Article 32 oversight;

NHRC is a valuable route but not exclusive and recommendations were not made generally binding.

SYNTHESIS

Court-assigned expertise may exceed the ordinary route,

but an autonomous statutory commission remains bound by statutory limits.

ASCII MASTER FLOW – PANEL 9/9: Enforcement limits, reform, PYQ routes and qualified synthesis

STRUCTURAL LIMITS

recommendatory outputs | one-year bar | armed-forces report route
| government-linked investigation support | federal and overlap boundaries.

PRACTICAL LIMITS

vacancies | staff/resources | delayed reports | uneven SHRC capacity
| weak Human Rights Court routing | limited civil-society trust.

REFORM

independent multidisciplinary investigation cadre
-> open plural appointments -> time-bound reasoned response
-> grave/concealed-violation limitation reform
-> safeguarded armed-forces fact-finding -> interoperable referrals.

PYQ ROUTES

2018 umbrella-commission debate | 2021 limitations and remedies
| 2023 body-classification support.

MAINS VERDICT

strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.